UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

NICHOLAS A. VENTURA,

Plaintiff,

v.

RANDSTAD US LLC, et al.,

Defendants.

Case No. 5:25-cv-02931-SRM-DTB

ORDER DENYING DEFENDANT RANDSTAD'S MOTION TO DISMISS FOR FAILURE TO CONFORM WTH THE LOCAL RULES [64]

Before the Court is Defendant Randstad US LLC's ("Defendant Randstad") Motion to Dismiss. Dkt. 64. Defendant Randstad argues that dismissal is proper because Plaintiff Nicholas A. Ventura's ("Plaintiff Ventura") First Amended Complaint fails to properly allege claims against it. *See* Dkt. 9–14. Plaintiff Ventura filed an opposition to the Motion and argues that Defendant Randstad's Motion is procedurally and substantively defective. *See* Dkt. 67. The Court has reviewed Defendant Randstad's Motion and **DENIES** it for failing to conform with the Local Rules.

Local Rule 7-3 demands that "counsel contemplating the filing of any motion must first contact opposing counsel to discuss thoroughly, preferably in person, the substance of the contemplated motion and any potential resolution." C.D. Cal. R. 7-3. The conference must take place at least seven days before the motion is filed. *Id.* If the parties cannot reach

a resolution, counsel for the moving party must include a statement in the notice of motion articulating that the parties met and conferred on a certain date. *Id.*

The Court's Standing Order coextensively governs the meet-and-confer process and imposes additional requirements. *See* Dkt. 16. That order requires parties to "meet and confer either by videoconference or in person. Email correspondence is insufficient." *Id.* at 12–13. "The moving party must include a truthful representation of full compliance with Local Rule 7-3 in the signed notice of motion, stating that the parties 'thoroughly discussed the substance and potential resolution of the filed motion [by videoconference or in person].'" *Id.* The Court cautioned the parties that it "strictly enforces Local Rule 7-3[.]" *Id.* Moreover, the Court reminded both parties about complying with the Local Rules at the hearing on May 13, 2026. Dkt. 60.

Here, Defendant Randstad did not comply with the meet-and-confer requirements under Local Rule 7-3 or this Court's Standing Order. In the declaration by Nathan D. Chapman, "the parties conferred again via email on May 18, 2026." *See* Dkt. 64 at 14. The Court notes that the First Amended Complaint was filed on May 21, 2026, before counsel met and conferred with Plaintiff Ventura. *See* Dkt. 62. Thus, the parties could not have met and conferred prior to the operative complaint being filed. Additionally, this procedural deficiency was noted by Plaintiff Ventura in his opposition. *See* Dkt. 67 at 2. Plaintiff Ventura contends that "[c]onsistency of application, and the equal treatment of the *pro se* party [with] the Rules expressly demand" that this Court enforce Local Rule 7-3. The Court agrees. This Court provided numerous warnings and informed the parties that future violations may result in sanctions. *See* Dkt. 68 at 5. Lastly, the Court notes that Defendant states the recent discussion occurred over email. As noted above, email is insufficient to satisfy Local Rule 7-3. *See* Dkt. 16 at 12–13.

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For these reasons, Defendant Randstad's Motion to Dismiss, Dkt. 64, is **DENIED**. *See* C.D. Cal. R. 7-3 (permitting denial of a motion for failure to comply with the Local Rule). The hearing on August 12, 2026, is **VACATED**. Defendant Randstad must file an answer within 14 days of this Order being issued.

IT IS SO ORDERED.

Dated: August 7, 2026



HON. SERENA R. MURILLO
UNITED STATES DISTRICT JUDGE